

85. Which is the only State in India to have the Common Civil Code?

- (a) Jammu & Kashmir (b) Mizoram
(c) Nagaland (d) Goa

U.P.P.C.S. (Mains) 2009

Ans. (d)

Goa was the only state in India to have the Common Civil Code. Goa Civil Code is based on the Portuguese Civil Code (Codigo Civil Portugues) of 1867 which was introduced in Goa in 1870 with some modifications. At present, Uttarakhand has enforced the uniform civil code on 27 January, 2025.

The High Court

*According to the Constitution of India, the High Court occupies the top position in the judicial administration of the state. *The Constitution of India provides for a High Court for each state, but the **7th Amendment Act of 1956**, authorised the Parliament to establish a common high court for two or more states and a union territory.

*Articles 214 to 231 in part VI of the Constitution deal with the organisation, independence, jurisdiction powers, procedures and so on of the High Court.

*Article 214 states that every state will have a High Court .

*Article 215 states that every **High Court will be Court of Record**. *Article 216 states that every High Court (whether inclusive or common) will consist of a chief justice and such other judges as the President may from time to time deem necessary to appoint. *A High Court is a Court of Record means that the judgements proceedings and acts of the High Court are recorded for perpetual memory and testimony. *These records are admitted to be of evidentiary value and cannot be questioned when produced before any subordinate court. They are recognised as legal precedents and legal references and the court also have powers to punish for its contempt. *The judges of the High Courts are appointed by the President.

*A judge holds the office until he attains the age of 62 years.

*He can resign from his office by writing to the President. *A judge can be removed from his office by the President on the recommendation of the Parliament. *The President can issue a removal order only after an address by the Parliament has been presented to him in the same session for such removal passed with a special majority. *Just like a Supreme Court Judge, a High Court Judge can be removed from his office on

the grounds of proved misbehaviour or incapacity. *A person to be appointed as a judge of a High Court - should be a citizen of India, he should have held a judicial office in the territory of India for ten years or he should have been an advocate of a high court (or high courts in succession) for ten years. *According to Article 223, the President can appoint a judge of a High Court as an acting chief justice of the High Court when the office of the Chief Justice is vacant or the Chief Justice of the High Court is temporarily absent or the Chief Justice is unable to perform his duties of his office.

***Article 226** of the constitution empowers the High Court to issue writs for the enforcement of the Fundamental Rights of the citizens or for any other purpose. Article 227 states that Every high court shall have superintendence over all courts and tribunals throughout the territories in relation to which it exercises jurisdiction.

*At present there are 25 High Courts and 7 of them have jurisdiction over more than one state/Union Territories. *Delhi and Jammu & Kashmir are the Union Territories with their own High Court. *The other Union territories fall under the jurisdiction of different state high courts. *The Parliament can extend the jurisdiction of a high court. *The institution of the high court originated in India in 1862. The High Courts were set up at Calcutta, Bombay and Madras. *In 1866, the High Court of Judicature for the North-Western Provinces came into existence at Agra. Later, the seat of the High Court for the North-Western Provinces was shifted from Agra to Allahabad in 1869. *Article 233 (1) states that the appointment, posting and promotion of district judges in a state are made by the Governor of the state in consultation with the High Court.

*Article 235 empowers the High Court to have control over all other subordinate courts in that state. *In India a person can be detained under **Preventive Detention** for a maximum period of **3 months**. *Lok Adalats (People's Court) is one of the alternative dispute resolution mechanisms in India, it is a forum where cases pending or at a pre-litigation stage in a court of law are settled. *A Lok Adalat can take up civil cases (including marriage & family) and compoundable criminal cases. *A Lok Adalat is usually presided over by a sitting or retired judicial officer as the chairman with two other members, a lawyer and a social worker. *The Gram Nyayalaya Act 2008 provides for establishment of Gram Nyayalayas at the grass-root level for the purpose of providing access to justice to the citizens at their doorstep. *The Gram Nyayalaya has jurisdiction over both civil and criminal cases.

1. The authority to determine the number of Judges in a High Court rests with which of the following entities?

- (a) The President
- (b) The Chief Minister of the State
- (c) The Prime Minister
- (d) The Parliament

69th B.P.S.C. (Pre) 2023

Ans. (a)

The number of judges in a high court in India may be decided by the President of the country. According to Article 216 of the Indian Constitution, each High Court will have a Chief Justice and as many other judges as the President may decide to appoint on a case-by-case basis. Significantly, Article 216 states that every High Court shall consist of a Chief Justice and such other Judges as the President may from time to time deem it necessary to appoint: Provided that the Judges so appointed shall at no time exceed in number such maximum number as the President may, from time to time, by order fix in relation to that Court.

2. Which among the following is not correct about a High Court in India?

- (a) The second appeal to the High Court is within its appellate jurisdiction.
- (b) Every judge of a High Court is appointed by the President.
- (c) Governor of the State appoints the Judges of a High Court.
- (d) High Courts may accept a petition related to 'Public interest litigation'.

U.P.P.C.S. (Mains) 2016

Ans. (c)

According to Article 217(1), every Judge of a High Court shall be appointed by the President by warrant under his hand and seal. So, option (c) is wrong while other options are correctly related to High Courts in India.

3. According to which Article of the Indian Constitution, can the President of India (in consultation with the Chief Justice) transfer a Judge of a High Court from one court to another?

- (a) Article 222
- (b) Article 227
- (c) Article 230
- (d) Article 237

M.P.P.C.S. (Pre.) 2022

Ans. (a)

As per the provision of Article 222 of the Indian Constitution, the President can transfer a judge from one High Court to another after consulting the Chief Justice of India. However, in the Third Judges case (1998), the Supreme Court opined that in case of the transfer of High Court judges, the Chief Justice of India should consult, in addition to the Collegium of four seniormost judges of the Supreme Court, the Chief Justice of the two high courts (one from which the judge is being transferred and the other receiving him). Thus, the sole opinion of the chief justice of India does not constitute the consultation process.

4. Acting Judges are appointed in :

- (a) Supreme Court
- (b) District Court
- (c) High Court
- (d) Both (a) and (b)

U.P. R.O./A.R.O. (Pre) (Re-Exam) 2016

Ans. (c)

Provision for the appointment of additional and acting Judges in the High Court comes under Article 224 of the Constitution of India. According to the Article 224 (1), if because of any temporary increase in the business of a High Court or by reason of arrears of work therein, it appears to the President that the number of the Judges of that court should be for the time being increased, duly qualified persons to be Additional Judges of the court for such period not exceeding two years as he may specify. According to the Article 224(2) when any Judge of a High Court other than the Chief Justice is by reason of absence or for any other reason unable to perform the duties of his office or is appointed to act temporarily as Chief Justice, a duly qualified person to act as a Judge of that court until the permanent Judge has resumed his duties. According to the Article 224(3), no person appointed as an additional or acting Judge of a High Court shall hold office after attaining sixty-two years.

5. The salaries and allowances of the Judges of the High Court are charged to the:

- (a) Consolidated Fund of India
- (b) Consolidated Fund of the State
- (c) Contingency Fund of India
- (d) Contingency Fund of the State

I.A.S. (Pre) 2002

U.P.P.C.S. (Mains) 2013

Ans. (b)

According to Article 202(3) (d), the salaries and allowances of the Judges of a High Court are charged to the Consolidated Fund of the State, but according to Article 112(3) (d), they get their pension from the Consolidated Fund of India.

6. The pension of a retired High Court Judge is charged to the –

- (a) Consolidated Fund of India.
- (b) Consolidated Fund of the State where he last served.
- (c) Consolidated Fund of the different States where he has served.
- (d) Contingency Fund of India.

U.P.P.C.S. (Mains) 2013

Ans. (a)

See the explanation of the above question.

7. The age of retirement of a High Court Judge is -

- (a) 65
- (b) 60
- (c) 62
- (d) 58

M.P.P.C.S. (Pre) 1999

Ans. (c)

The retirement age of a Judge of the High Court is 62 years. It has been fixed under Article 217(1) by the 15th Constitutional Amendment of 1963. Before that it was 60 years. 114th Amendment Bill (2010) aimed to increase the retirement age of a High Court Judge from 62 to 65 years. But, it could not pass.

8. What is the maximum age limit of a High Court Judge?

- (a) 60 years
- (b) 62 years
- (c) 58 years
- (d) 56 years

M.P. P.C.S. (Pre) 2023

Ans. (b)

See the explanation of the above question.

9. Consider the following statements:

1. There are 25 High Courts in India.
2. Punjab, Haryana and the Union Territory of Chandigarh have a common High Court.
3. National Capital Territory of Delhi has a High Court of its own.

Which of the statements given above is/are correct ?

- (a) 2 and 3
- (b) 1 and 2
- (c) 1, 2 and 3
- (d) 3 only

I.A.S. (Pre) 2002

Ans. (c)

Presently there are 25 High Courts in the country. High Courts are instituted as Constitutional Courts under Part VI, Chapter V, Article 214 of the Indian Constitution. Union Territory of Delhi and Jammu & Kashmir have their own High Court. It is the only Union Territory to have a separate High Court. While Punjab, Haryana and the Union Territory of Chandigarh have a common High Court.

10. Consider the following statements regarding the High Courts in India:

1. There are eighteen High Courts in the country.
2. Three of them have jurisdiction over more than one state.
3. No Union Territory has High Court of its own.
4. Judges of the High Court hold office till the age of 62.

Which of these statements is/are correct?

- (a) 1, 2 and 4
- (b) 2 and 3
- (c) 1 and 4
- (d) 4 only

I.A.S. (Pre) 2001

Ans. (*)

At present, the total number of High Courts are 25 in India. Among these, 7 have jurisdiction over more than one State/ Union Territory. Union Territory of Delhi and Jammu and Kashmir have its own High Court.

11. The number of High Court of Judicature in India is

- (a) Twenty
- (b) Twenty one
- (c) Twenty two
- (d) Twenty three

U.P. Lower Sub. (Pre) 2008

Ans. (*)

When this question was asked, there were 21 High Courts. But there are 25 High Courts in India at present.

12. Which one of the following High Courts has the Territorial Jurisdiction over Andaman and Nicobar Islands?

- (a) Andhra Pradesh
- (b) Calcutta
- (c) Madras
- (d) Orissa

I.A.S. (Pre) 2003

Ans. (b)

Kolkata High Court has territorial Jurisdiction over the Andaman and Nicobar Islands while Chandigarh comes under the Jurisdiction of the Punjab and Haryana High Court. Delhi has its own High Court while Puducherry comes under the Jurisdiction of Chennai High Court and Lakshadweep comes under the Jurisdiction of Kerala High Court.

13. Which of the following High Courts has its jurisdiction over more than one state or Union Territory?

- (a) Allahabad (b) Delhi
(c) Gujarat (d) Bombay

38th B.P.S.C. (Pre) 1992

Ans. (d)

Bombay High Court has Jurisdiction over more than one state or union Territory. It has Jurisdiction over the States of Maharashtra, Goa, the Union Territories of Dadra and Nagar Haveli and Daman and Diu.

14. How many High Courts in India have jurisdiction over more than one State (Union Territories not included)?

- (a) 2 (b) 3
(c) 5 (d) 7

I.A.S. (Pre) 2008

Ans. (b)

Excluding the Union Territories, there are Three High Court having Jurisdiction over more than one State.

They are:

Gauhati High Court - Arunachal Pradesh, Assam, Nagaland and Mizoram
Bombay High Court - Maharashtra and Goa
Punjab and Haryana High Court - Punjab and Haryana

15. Which one of the following Indian States does not have its own High Court?

- (a) Orissa (b) Sikkim
(c) Himachal Pradesh (d) Manipur

U.P.P.C.S. (Mains) 2005

Ans. (*)

When this question was asked, Manipur did not have its own High Court. It was under the Gauhati High Court. High Court of Manipur was established in March, 2013.

16. In which of these States, High Courts were established in March 2013?

1. Arunachal Pradesh
2. Meghalaya
3. Mizoram
4. Tripura

Choose the right answer from the given code :

- (a) only 1 and 3 (b) only 2 and 4
(c) only 1, 2 and 3 (d) 1, 2, 3 and 4

U.P.P.C.S (Pre) 2013

Ans. (b)

In January 2013, the Indian Government established three new High Courts i.e., (Meghalaya, Manipur, and Tripura) in the North-Eastern States. These High Courts started working in March 2013.

17. Which of the following High Courts has the largest number of Benches?

- (a) Kolkata High Court
(b) Madhya Pradesh High Court
(c) Bombay High Court
(d) Gauhati High Court

U.P.P.C.S. (Mains) 2007

Ans. (c) & (d)

The seat of the Calcutta High Court is in Kolkata, the capital of West Bengal. The Kolkata High Court extended its Circuit Bench in Port Blair, the Capital of the Andaman and Nicobar Islands in Jalpaiguri, the headquarters of the Jalpaiguri division of West Bengal. Madhya Pradesh High Court seat is at Jabalpur, and two temporary Benches are at Indore and Gwalior. Mumbai High Court has jurisdiction over the states of Maharashtra, Goa, the Union Territories of Daman and Diu and Dadra and Nagar Haveli. The Court has Benches in Nagpur, Aurangabad, and Panaji. The principal seat of the Guwahati High Court is at Guwahati in Assam. The Court has the Kohima Bench for Nagaland State, the Aizawl Bench for Mizoram State and the Itanagar Bench for Arunachal Pradesh State. Currently Mumbai and Gauhati High Courts have 3 Benches each.

18. Which one of the following is not the main jurisdiction of the High Court of a State?

- (a) Advisory jurisdiction
(b) Original jurisdiction
(c) Supervisory jurisdiction
(d) Appellate jurisdiction

U.P.P.C.S. (Mains) 2007

Ans. (a)

According to Article 143 of the Indian Constitution, the Advisory Jurisdiction is the main Jurisdiction of the Supreme Court, not of High Courts.

19. When the Chief Justice of a High Court acts in an administrative capacity, he is subject to:

- (a) The writ jurisdiction of any of the other judges of the High Court
(b) Special control exercised by the Chief Justice of India

- (c) Discretionary powers of the Governor of the state
- (d) Special powers provided to the Chief Minister in this regard

I.A.S. (Pre) 1996

Ans. (a)

The Chief Justice of a High Court acts in a dual capacity, i.e., judicial and administrative. In an administrative capacity, the Chief Justice of a High Court is subject to the Writ Jurisdiction of any other Judge of the High Court. He controls, observes, superintends and administers the Lower Courts.

20. The Writ of Certiorari is issued by a Superior Court

- (a) To an inferior court to transfer the record of proceedings in a case for review.
- (b) To an inferior court to stop further proceedings in a particular case.
- (c) To an officer to show his right to hold a particular office.
- (d) To a public authority to produce a person detained by it before the court within 24 hours.

U.P.P.C.S. (Spl) (Mains) 2008

Ans. (a)

The writ of Certiorari is issued to a lower court directing that the record of a particular case be sent up for review, together with all supporting files, evidence, and documents, usually with the intention of overruling the judgment of the lower Court. It is one of the mechanisms by which the fundamental rights of the citizens are protected.

21. A Writ of Prohibition is an order issued by the Supreme Court or High Courts to :

- (a) a government officer prohibiting him from taking a particular action.
- (b) the Parliament / Legislative Assembly to pass a law on Prohibition.
- (c) the lower court prohibiting continuation of proceedings in a case.
- (d) the Government prohibiting it from following an unconstitutional policy.

I.A.S. (Pre) 2024

Ans. (c)

The Writ of Prohibition is a legal term that implies "to prohibit, prevent, forbid, or restrain". It is a legal remedy that can be sought from a higher court to prevent a lower court or tribunal from exceeding its jurisdiction or acting unlawfully. It is a command issued by a superior court to a lower court, directing it to cease proceedings that are

beyond its legal authority or contrary to the principles of natural justice. In essence, the writ of prohibition serves as a check on the power of lower courts or tribunals, ensuring that they operate within the boundaries of their jurisdiction and adhere to the principles of justice. It acts as a mechanism to correct errors and prevent potential harm that may arise from biased or unfair proceedings. It cannot be enforced against administrative agencies, statutory authorities, or private persons or enterprises. It is exclusively applicable to judicial and quasi-judicial bodies. Hence, option (c) is the correct answer.

22. Which one of the following writs examines the functioning of subordinate courts?

- (a) Quo Warranto
- (b) Mandamus
- (c) Certiorari
- (d) Habeas Corpus

U.P.P.C.S. (Mains) 2008

Ans. (c)

The writ of Certiorari is issued by the higher Court to a lower Court to examine the functioning of subordinate Court. The writ orders that the case be delivered to the higher court, with all the decisions and judgments made by the subordinate court, in order to review the case.

23. Which among the following is issued when the procedure is pending in court?

- (a) Mandamus
- (b) Certiorari
- (c) Prohibition
- (d) Quo-Warranto

U.P.P.C.S. (Pre) 2010

Ans. (c)

The writ of Prohibition is issued when the procedure is pending in Court. When the lower court hears any case out of its Jurisdiction, then the upper Court takes over the case by issuing Prohibition writ.

24. Given below are two statements, one labelled as Assertion (A) and the other labelled as Reason (R).

Assertion (A) : Willful disobedience or non-compliance of Court orders and use of derogatory language about Judicial behaviour amount to Contempt of Court.

Reason (R) : Judicial activism cannot be practiced without arming the Judiciary with punitive powers to punish contemptuous behavior.

In the context of the above two statements which one of the following is correct?

- (a) Both (A) and (R) are true and (R) is the correct explanation of (A).

- (b) Both (A) and (R) are true but (R) is not the correct explanation of (A).
 (c) (A) is true but (R) is false.
 (d) (A) is false but (R) is true.

I.A.S. (Pre) 1997

Ans. (b)

Both the Assertion and the Reason are correct but the Reason does not explain the Assertion. Hence option (b) is correct.

25. With reference to the writs issued by the Courts in India, consider the following statements:

1. **Mandamus will not lie against a private organisation unless it is entrusted with a public duty.**
2. **Mandamus will not lie against a Company even though it may be a Government Company.**
3. **Any public minded person can be a petitioner to move the Court to obtain the writ of Quo Warranto.**

Which of the statements given above are correct?

- (a) 1 and 2 only (b) 2 and 3 only
 (c) 1 and 3 only (d) 1, 2 and 3

I.A.S. (Pre) 2022

Ans. (c)

Under Articles 32 and 226, the Supreme Court and High Court respectively issues five kinds of writ—Habeas corpus, Mandamus, Prohibition, Certiorari and Quo-Warranto. Mandamus will not lie against a private organisation unless it is entrusted with public duty. Mandamus will lie against a company if it is a government company. Thus statement (2) is wrong. Any public-minded person can be a petitioner to move the court to obtain the writ of Quo Warranto.

26. The power of High Court to issue writ covers:

- (a) Constitutional Rights (b) Statutory Rights
 (c) Fundamental right (d) All of above

U.P.P.C.S. (Pre) 1997

Ans. (d)

The power to issue writs is given to the Supreme Court under Article 32 and the High Court under Article 226 to issue a writ of Habeas Corpus, Mandamus, Prohibition, Quo Warranto, and Certiorari. The power of the Supreme Court to issue writs is limited to Part III of the Constitution, but the High Court has the right to issue writs for enforcement of any of the rights conferred in Part III and for any other purpose (Legal Rights).

27. Consider the following statements and select the correct answer from the code given:

Assertion (A) : High Courts are in better position to protect rights of Indian citizens than the Supreme Court.

Reason (R) : Supreme Court can issue writs to protect only Fundamental Rights.

Code :

- (a) Both (A) and (R) are true and (R) is the correct explanation of (A).
 (b) Both (A) and (R) are true but (R) is not a correct explanation of (A).
 (c) (A) is true but, (R) is false.
 (d) (A) is false but, (R) is true.

U.P.P.C.S. (Mains) 2004

Ans. (a)

Both the statements are correct. According to Article 32, the Supreme Court can issue writs only for the protection of fundamental rights, but according to Article 226, the High Court can issue writs not only in matters relating to fundamental rights but also in any other matter.

28. Consider the following statements:

1. **The mode of removal of a Judge of a High Court in India is same as that of removal of a Judge of the Supreme Court.**
2. **After retirement from the office, a permanent Judge of a High Court can not plead or act in any Court or before any authority in India.**

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
 (c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre) 2007

Ans. (a)

According to Article 217(1)(b), a Judge of the High Court may be removed from his office by the President in the manner provided in clause (4) of Article 124 for the removal of a Judge of the Supreme Court. So statement 1 is correct. According to Article 220, No person who, after the commencement of this Constitution, has held office as a permanent Judge of a High Court shall plead or act in any Court or before any authority in India except the Supreme Court and the other High Courts.

29. A High Court Judge addresses his letter of resignation to—

- (a) The President
- (b) The Chief Justice of India
- (c) The Chief Justice of his High Court
- (d) The Governor of the State

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (a)

According to **Article 217(1)(a)**, a Judge of the High Court may, by writing under his hand addressed to the President, resign his office.

30. Against which Judge the Rajya Sabha passed the motion of impeachment in 2011, but he resigned to save himself before it could be passed by the Lok Sabha?

- (a) Justice V. Ramaswami
- (b) Justice Bhattacharya
- (c) Justice Soumitra Sen
- (d) Justice P.D. Dinakaran

R.A.S./R.T.S.(Pre) 2012

Ans. (c)

Former Judge of Calcutta High Court, Justice Soumitra Sen was, charged for misappropriation of funds. So a motion of impeachment was passed against him in Rajya Sabha in 2011. It was also presented in Lok Sabha on 5th September, 2011 but he resigned from his post on 1st September 2011 before the bill was put in Lok Sabha.

31. What is the nature of the dispute of Babri Mosque/Ramjanmabhoomi Case before Allahabad High Court?

- (a) Writ petition
- (b) Title suit
- (c) Claim for compensation
- (d) Judicial review petition

45th B.P.S.C. (Pre) 2001

Ans. (b)

The dispute of Babri Mosque/Ramjanmabhoomi is presented before Allahabad High Court as a case of Title Suit, in which two separate communities have claimed for the same land and property.

32. Which High Court stated that the divorce, by saying 'Talaq' 3 times, is illegal?

- (a) Calcutta HC
- (b) Allahabad HC
- (c) Bombay HC
- (d) Punjab HC

39th B.P.S.C. (Pre) 1994

Ans. (b)

Allahabad High Court decided in the case of **Rahmatullah Vs State of UP 1994** that the divorce by saying Talaq for 3 times is illegal. It violates **Articles 14 and 15**. It is noteworthy that under 'The Muslim Women (Protection

of Rights on Marriage) Act, 2019, any pronouncement of talaq by a Muslim husband upon his wife, by words either spoken or written or in electronic form or in any other manner whatsoever, shall be void and illegal.

33. Who became the Chief Justice of Chhattisgarh High Court in 2008?

- (a) Rajeev Gupta
- (b) S.R. Nayak
- (c) Anang Kumar Patnaik
- (d) K.H.N. Kuranga
- (e) W.A. Shishak

Chhattisgarh P.C.S. (Pre) 2013 (*)

Ans. (a)

Shri Rajeev Gupta became the Chief Justice of Chhattisgarh High Court on 2 February, 2008. He was Chief Justice of Uttarakhand High Court before becoming the Chief Justice of Chhattisgarh High Court. Current Chief Justice of Chhattisgarh High Court is Justice Ramesh Sinha.

34. Name the Chairman of the 'Law Commission' who advocated that One-third of the Judges in each High Court should be from another State.

- (a) Justice P.N. Bhagwati
- (b) Justice Hidayatullah
- (c) Justice H.R. Khanna
- (d) Justice Chandrachud

Jharkhand P.C.S. (Pre) 2013

Ans. (c)

The Chairman of 8th Law Commission of India, Justice H. R. Khanna in 80th report of the commission recommended that at least one-third Judges of the High Court should be from other States ('The Method of Appointment of Judges').

35. The term District Judge is mentioned in which of the following Article of Constitution?

- (a) Article 230
- (b) Article 231
- (c) Article 232
- (d) Article 233
- (e) None of the above

Chhattisgarh P.C.S. (Pre) 2016

Ans. (d)

The term District Judge is mentioned in Article 233 of the Indian Constitution which deals with the appointment of District Judges.

36. According to the Constitution of India the term 'district judge' shall not include:

- (a) Chief presidency magistrate
- (b) Sessions judges
- (c) Tribunal judge
- (d) Chief judge of a small cause court

I.A.S. (Pre) 1996

Ans. (c)

According to Article 236(a), the expression district Judge includes Judge of a city civil Court, additional district Judge, joint district Judge, assistant district Judge, chief Judge of a small cause court, chief presidency magistrate, additional chief presidency magistrate, sessions Judge, additional sessions Judge and assistant sessions Judge. The district Judge shall not include the Tribunal Judge.

37. In the following questions, there are two statements. One is labelled as Assertion (A) and other is labelled as Reason (R):

Assertion (A): The District Judge is the highest judicial authority in the district.

Reason (R): The District Judge has both judicial and administrative powers. He has also supervisory powers over all the subordinate courts in the district.

In the context of the above two statements which of the following is correct?

- (a) Both Assertion (A) and Reason (R) are true and Reason (R) is correct explanation of Assertion (A)
- (b) Both Assertion (A) and Reason (R) are true but Reason (R) is not correct explanation of Assertion (A)
- (c) Assertion (A) is true but Reason (R) is false
- (d) Assertion (A) is false but Reason (R) is true

Chhattisgarh P.C.S. (Pre) 2021

Ans. (a)

Article 233 of the Indian Constitution defines appointments, posting and promotion of district judges in any state. It shall be made by governor of state in consultation with high court exercising jurisdiction in relation to such state. District Judge is the highest judicial authority in the district. The district judge has both judicial and administrative powers. He has supervisory powers over all the subordinate courts in the district.

38. With reference to India, consider the following statements:

- 1. Government law officers and legal firms are recognised as advocates, but corporate lawyers and patent attorneys are excluded from recognition as advocates.**
- 2. Bar Councils have the power to lay down the rules relating to legal education and recognition of law colleges.**

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 2022

Ans. (b)

The Advocates Act, 1961 contains rules and laws pertaining to advocates. The major goal of this act is to create a single class of legal practitioners known as 'advocates'. Government law officers, legal firms, corporate lawyers and patent attorneys are recognised as advocates. Thus statement (1) is incorrect. According to this act, there must be the establishment of autonomous Bar Councils, one for all of India and another for each state. Thus bar councils of India have the power to lay down the rules relating to legal education and recognition of law colleges. Thus statement (2) is correct.

39. Consider the following statements :

Statement-I :

In India, prisons are managed by State Governments with their own rules and regulations for the day-to-day administration of prisons.

Statement-II :

In India, prisons are governed by the Prisons Act, 1894 which expressly kept the subject of prisons in the control of Provincial Governments.

Which one of the following is correct in respect of the above statements?

- (a) Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I
- (b) Both Statement-I and Statement-II are correct and Statement-II is not the correct explanation for Statement-I
- (c) Statement-I is correct but Statement-II is incorrect
- (d) Statement-I is incorrect but Statement-II is correct

I.A.S. (Pre.) 2023

Ans. (a)

As per the provisions of the Constitution of India, 'prisons'/'persons detained therein' is a 'State' subject under entry 4 of the State List. In India, prisons are governed by the Prisons Act, 1894 which vested the Provincial Governments (now States) the power to make rules on prisons so the responsibility of prison management and prisoners' administration solely vests with State Governments who alone are competent to make appropriate legislative provisions in this regard. However, given the critical role that efficient prison management plays in the criminal justice system, recently, the Ministry of Home Affairs has finalised a comprehensive 'Model Prisons Act, 2023', which may serve as a guiding document for the States, and for adoption in their jurisdiction. Hence statements 1 and 2 are correct and statement 2 is the correct explanation of statement 1.

40. With reference to India, consider the following statements :

- 1. Judicial custody means an accused is in the custody of the concerned magistrate and such accused is locked up in police station, not in jail.**
- 2. During judicial custody, the police officer in charge of the case is not allowed to interrogate the suspect without the approval of the court.**

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre) 2021

Ans. (b)

Police Custody means that police have the physical custody of the accused while **Judicial Custody** means an accused is in the custody of the concerned Magistrate. In former (Police Custody), the accused is lodged in police station lockup while in latter (Judicial Custody), it is the jail. When Police takes a person into custody, the Cr.P.C kicks-in and they were produce him/her before a Magistrate within 24 hours of the arrest.

During Judicial Custody, the police officer in charge of the case is not allowed to interrogate the suspect. However, the court may allow the interrogations to be conducted if it opines the interrogation is necessary under the facts produced before the court.

Cr.P.C. Sec.167 - Criminal Procedure - Judicial custody - Interrogation by Police - Permissible - Magistrate can direct the place and manner - Mere interrogation by Police, during such custody by permission of the Magistrate, cannot change the nature of custody **Gian Singh Vs. State (Delhi Administration) 1981.**

41. With reference to Lok Adalats, which of the following statements is correct?

- (a) Lok Adalat have the jurisdiction to settle the matters at the pre-litigation stage and not those matters pending before any court.
- (b) Lok Adalats can deal with matters which are civil and not criminal in nature.
- (c) Every Lok Adalat consists of either serving or retired judicial officers only and not any other person.
- (d) None of the statements given above is correct.

I.A.S. (Pre) 2010

Ans. (d)

The most important factor to be considered while deciding the cases at the Lok Adalat is the consent of both the parties. It cannot be forced on any party that the matter has to be decided by the Lok Adalat. However, once the parties agree that the matter has to be decided by the Lok Adalat, then any party cannot walk away from the decision of the Lok Adalat. The Lok Adalat is presided over by a sitting or retired judicial officer as the Chairman, with two other members, usually a lawyer and a social worker. Experience reveals that in Lok Adalats it is easier to settle money claims since in most of such cases the quantum alone may be in dispute. Sometimes it also considers criminal offences.

42. With reference to the 'Gram Nyayalaya Act,' which of the following statements is/are correct?

- 1. As per the Act, Gram Nyayalaya can hear only civil cases and no criminal cases.**
- 2. The Act allows local social activists as mediators/reconciliators.**

Select the correct answer using the code given below:

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre) 2016

Ans. (b)

According to Section 11 of Gram Nyayalayas Act, 2008 the Gram Nyayalaya shall exercise both civil and criminal Jurisdiction in the manner and to the extent provided under this Act. So statement (1) is wrong. While according to Section 27, the district court shall in consultation with the district Magistrate prepare a panel consisting of the names of social workers at the village level. Thus, statement (2) is correct.

43. The mobile court in India is the brain child of –

- (a) Justice Bhagwati (b) Mr. Rajeev Gandhi
(c) Dr. A.P.J. Abdul Kalam (d) Mrs. Pratibha Patil

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (c)

Former President of India Dr. A.P.J. Abdul Kalam first imagined mobile Courts. The first mobile Court of India was established in August 2007 in Mewat district of Haryana. It was inaugurated by contemporary Chief Justice KG Balakrishnan. The concept of the mobile court is based on the pressing need to take the administration of civil and criminal justice closer to the people so that those living in remote areas could benefit without incurring the expenses of travelling to courts at distant places.